



Department of Toxic Substances Control

Edwin F. Lowry, Director
5796 Corporate Avenue
Cypress, California 90630



Winston H. Hickox
Agency Secretary
California Environmental
Protection Agency

Gray Davis
Governor

September 8, 2003

Mr. Bob Sendzik
Facilities Planning Support Manager
Capistrano Unified School District
32972 Calle Perfecto
San Juan Capistrano, California 92675-4792

PHASE I ENVIRONMENTAL SITE ASSESSMENT DETERMINATION, CAPISTRANO
UNIFIED SCHOOL DISTRICT, OSO GRANDE SCHOOL, SIENNA PARKWAY AND
O'NEIL DRIVE, LADERA RANCH, ORANGE COUNTY (SITE CODE 404477-11)

Dear Mr. Sendzik:

The Department of Toxic Substances Control (DTSC) has reviewed the Phase I
Environmental Site Assessment (Phase I), dated February 4, 2002, received
August 26, 2003, and prepared by NMG Geotechnical, Incorporated.

The Phase I indicates the site is currently vacant, graded land. Historically, the site is
part of former, large cattle ranch, used for dry farming and grazing. Mass grading of the
site began in 1999 and was completed in 2001. The size of the proposed school site
was not identified in the Phase I. According to the Phase I, the site has been cut and
filled, up to 110 feet below ground surface, with materials from onsite sources and
undeveloped areas within the immediate area. Due to onsite cut and fill activities, there
is the potential for methane production due to the degradation of organic materials and
need to be evaluated. It should be noted that the Phase I is dated 2002 and the
Environmental Data Resource (EDR) report (Appendix C) is dated 2001. According to
DTSC's Phase I Advisory, 2001, a Phase I greater than 180 days old should include a
recent site reconnaissance, verification of current site conditions, and recent EDR
report.

*The energy challenge facing California is real. Every Californian needs to take immediate action to reduce energy consumption.
For a list of simple ways you can reduce demand and cut your energy cost, see our Web-site at www.dtsc.ca.gov*



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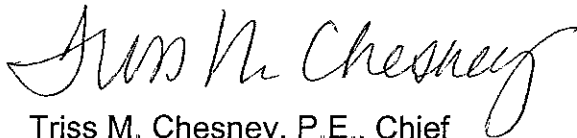
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Based on the information presented, DTSC has determined that a Preliminary Endangerment Assessment (PEA) is needed for this site. The purpose of the PEA is to determine whether a release or threatened release of hazardous materials or naturally occurring hazardous materials, which may pose a threat to public health or the environment, exist at the site.

If the Capistrano Unified School District (District) elects to pursue site acquisition or construction, the District shall enter into an Environmental Oversight Agreement (EOA) with DTSC to oversee the preparation of a PEA. A copy of the Environmental Oversight Program application for the EOA may be obtained from the DTSC website at www.dtsc.ca.gov.

Upon completion of the application, the District should forward it to Ms. Robbie Morris, EOA Coordinator, in the San Diego office at 2878 Camino Del Rio South, Suite 402, San Diego, California 92108-3847. For more information about the EOA application or PEA process, the District may contact Ms. Robbie Morris at (619) 278-3761 or me at (714) 484-5447.

Sincerely,



Triss M. Chesney, P.E., Chief
Schools Unit-Cypress Office
School Property Evaluation and Cleanup Division

cc: Mr. Michael O'Neill
Consultant/Environmental Coordinator
School Facilities Planning Division
California Department of Education
660 J Street, Suite 350
Sacramento, California 95814

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bcc: Ms. Robbie Morris
Schools Unit-Cypress

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